

		arbitration proceeding at JAMS. Defendant concedes that this is so and does not object to the request to resume the action in this court. The request to vacate the 2/6/25 Order and lift the stay is therefore GRANTED. The Court sets a Case Management Conference for this action on 9/28/26 at 8:45am in Dept. C24. Plaintiff's request that a monetary sanction be imposed on Defendant, pursuant to Code of Civ. Proc. Section 1281.99, subdivision (a), is GRANTED IN PART. Although sanctions "shall" be imposed under the circumstances shown here, and the \$471.96 claimed for costs appears reasonable, the Court finds that only \$4,500 should be awarded for fees incurred on this motion. Sanctions in the amount of \$4,971.96 are therefore imposed on Defendant, to be paid to Plaintiff, through his counsel of record, within 30 days. As Plaintiff's request for additional non-monetary sanctions is not supported by evidence sufficient to warrant such relief, that request is DENIED. Plaintiff shall give notice.
307	<i>Executive 57, LLC vs. The Yacht Works Engineering By Jim Vidales, Inc.</i>	Before the court is a Motion for Summary Judgment, or in the Alternative, Summary Adjudication (Motion) filed by plaintiff/cross-defendant Executive 57, LLC (Plaintiff) as to Plaintiff's First Amended Complaint (FAC) and as to defendant/cross-complainant The Yacht Works, Engineering By Jim Vidales, Inc.'s (Defendant for this ruling) Second Amended Cross-Complaint (SACC). The Motion is GRANTED in part and DENIED in part. As an initial note, the court in its discretion will proceed with the merits despite some issues with Plaintiff's separate statement. (<i>Truong v. Glasser</i> (2009) 181 Cal. App. 4th 102, 118.) Furthermore,

while Plaintiff did file a prior motion for summary judgment, that motion was withdrawn after the FAC was filed and the merits were not considered. The court can proceed with the hearing.

First Amended Complaint

The court denies the Motion as to each of Plaintiff's causes of action (COA) in the FAC as Plaintiff has not proved each element of each of Plaintiff's five COA as required. (Code Civ. Proc., § 437c, subd. (p)(1).) Plaintiff produced no evidence the invoices produced were not 'credible' or that Defendant did not purchase the parts as identified in the subject invoice. Defendant identified at least six different parts providers, yet Plaintiff has not produced any testimony or documentation from any of these sources indicating the parts were not purchased as Defendant contends. As to Plaintiff's claim Defendant produced no evidence the subject parts were installed, Defendant's responses to written discovery requests identified two witnesses regarding the installation. Plaintiff produced no deposition testimony from those individuals, nor did Plaintiff produce any evidence the subject parts were not actually installed.

As Plaintiff has not met its initial burden on the motion by producing evidence supporting each element of each of its COA, the Motion is denied as to each COA.

Second Amended Cross-Complaint

The court grants the Motion as to Defendant's first and second COA, but denies it as to the third COA.

As to the first COA for breach of written contract, the two 'contracts' which Defendant identified were a repair estimate and an invoice for repairs. Defendant later conceded that it did not send the

estimate to Plaintiff and that its allegations made in the SACC related thereto were made in error. The invoice also does not appear to be a written contract, but rather a request for payment. As there is no identification of a written contract that was breached, Plaintiff has met its initial burden of showing one or more elements of the COA cannot be established. (Code of Civil Procedure section 437c, subdivision (p)(2).) Similarly, while the invoice is evidence of an agreement between the parties, the documents identified do not form an oral contract and Defendant did not produce the terms of such contract. Defendant also did not provide any specific opposition to these COA. The Motion is **GRANTED** as to COA Nos. 1 and 2.

As to COA No. 3 for reasonable value of services, Plaintiff's only argument is again that Defendant cannot produce credible evidence regarding the purchase or installation of the subject parts. However, as noted with the COA to the FAC, Plaintiff has not met its initial burden of producing evidence supporting that argument. Similarly, Plaintiff's affirmative defenses are not supported by evidence. The Motion is **DENIED** as to COA No. 3.

Request to Take Judicial Notice:

Granted pursuant to Evid. Code § 452(d) as to Nos. 1 and 2.

Plaintiff's Objections:

Sustained as to Nos. 1 (Improper legal conclusion, no basis, mischaracterizes evidence – Related only to statements regarding McDaniel as MSJ by McDaniel was previously granted summary judgment filed by McDaniel holding there was no written contract for payment by McDaniel to TYW and McDaniel cannot be held personally liable for the contract between TYW and Plaintiff. ROA 259.);